

TENTATIVE RULING

Case: **Sierra Northern Railway v. California Department of Water
Resources
Case No. CV2022-0479**

Hearing Date: **August 27, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Tausig v. City of West Sacramento**
Case No. CV2024-3068

Hearing Date: **August 27, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Berliner Seilfabrik Play Equipment Corporation's demurrer to plaintiff Riley Tausig, a minor by and through her GAL Melissa Tausig's ("plaintiff") First Amended Complaint ("FAC") is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Pro., § 430.10, subd. (e).) Plaintiff's FAC does not state facts sufficient to constitute a cause of action for violation of California Government Code section 835 because it does not allege that defendant is a public entity. (Gov. Code, §§ 835, 811.2; see also Opposition, p. 2.) Additionally, plaintiff has not shown how supplying the necessary factual allegations in an amendment may cure the defect. (*City of Stockton v. Superior Court* (2007) 42 Cal.App.4th 730, 748.)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.